

Appendix - 1



PO Number		PRICE BREAKDOWN AND DESCRIPTION OF PURCHASE ORDER					Company Name	
4203000812							PT PANCA AMARA UTAMA	
PO Date							Location/Project Name	
28 November 2025							Banggai Ammonia Plant [BAP]	
Order Type							Vendor Name	
PAU PO Service							UD SINAR MAS	
No.	Item Code	Description	Additional Text / Vendor Reference	Unit	Qty	Unit Price (IDR)	Total Price (IDR)	Start Date - End Date
1	4260000007	MNT_SVC-VEH,VEH,CRTV,TYT- AVNZ MAINTENANCE SERVICE - VEHICLE, VEHICLE, CORRECTIVE, TOYOTA-AVANZA		EA	1			28 Nov 2025 31 Dec 2025
1.1		TIRE REPLACE	PR 1213000890 CM (CORRECTIVE MAINTENANCE) CM AVANZA DN 1184 CC GANTI BAN DEPAN DAN BELAKANG (KIRI DAN KANAN) TIRE SIZE 195/60 R16 89 H DUNLOP TOTAL: 4 EA	EA	4	1,040,000	4,160,000	28 Nov 2025 31 Dec 2025
1.2		SPOORING	SPOORING	LOT	1	200,000	200,000	28 Nov 2025 31 Dec 2025
1.3		BALANCING	BALANCING	LOT	1	280,000	280,000	28 Nov 2025 31 Dec 2025
2	4260000006	MNT_SVC-VEH,VEH,CRTV,TYT- INN MAINTENANCE SERVICE - VEHICLE, VEHICLE, CORRECTIVE, TOYOTA-INNOVA	PR 1213000900 CM (CORRECTIVE MAINTENANCE) WINDOW TINT / RIBEN CM INNOVA - DN 1729 CB WINDOW TINT 20% - FRONT WINDOW (KACA DEPAN) PERFECT GARD LIGHT NEUTRAL - 20% - VISIBLE LIGHT TRANSMITTED (VLT) 51% - ULTRA VIOLET REJECTED (UV) 99% - TOTAL SOLAR ENERGY REJECTED (TSER) 45% - INFRA RED REJECTED (IR) 45% WINDOW TINT 40% LEFT & RIGHT SIDE WINDOW (KACA SISI KIRI - SISI KANAN), AND REAR WINDOW (KACA BELAKANG PINTU BAGASI) PERFECT GARD BLACK TITANIUM - 40% - VISIBLE LIGHT TRANSMITTED (VLT) 42% - ULTRA VIOLET REJECTED (UV) 99% - TOTAL SOLAR ENERGY REJECTED (TSER) 42% - INFRA RED REJECTED (IR) 60%	EA	1	2,200,000	2,200,000	28 Nov 2025 31 Dec 2025
3	4260000005	MNT_SVC-VEH,VEH,CRTV,TYT- FRTNER MAINTENANCE SERVICE - VEHICLE, VEHICLE, CORRECTIVE, TOYOTA-FORTUNER	PR 1213000900 CM (CORRECTIVE MAINTENANCE) WINDOW TINT / RIBEN CM FORTUNER - DN 1913 RA WINDOW TINT 20% - FRONT WINDOW (KACA DEPAN) PERFECT GARD LIGHT NEUTRAL - 20% - VISIBLE LIGHT TRANSMITTED (VLT) 51% - ULTRA VIOLET REJECTED (UV) 99% - TOTAL SOLAR ENERGY REJECTED (TSER) 45% - INFRA RED REJECTED (IR) 45%	EA	1	2,025,000	2,025,000	28 Nov 2025 31 Dec 2025

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4203000812							PT PANCA AMARA UTAMA	
PO Date							Location/Project Name	
28 November 2025							Banggai Ammonia Plant [BAP]	
Order Type							Vendor Name	
PAU PO Service							UD SINAR MAS	
No.	Item Code	Description	Additional Text / Vendor Reference	Unit	Qty	Unit Price (IDR)	Total Price (IDR)	Start Date - End Date
4	4260000008	MNT_SVC-VEH,VEH,CRTV,TYT-HIACE MAINTENANCE SERVICE - VEHICLE, VEHICLE, CORRECTIVE, TOYOTA-HIACE	WINDOW TINT 40% LEFT & RIGHT SIDE WINDOW (KACA SISI KIRI - SISI KANAN), AND REAR WINDOW (KACA BELAKANG PINTU BAGASI) PERFECT GARD BLACK TITANIUM - 40% - VISIBLE LIGHT TRANSMITTED (VLT) 42% - ULTRA VIOLET REJECTED (UV) 99% - TOTAL SOLAR ENERGY REJECTED (TSER) 42% - INFRA RED REJECTED (IR) 60%	EA	1			28 Nov 2025 31 Dec 2025
4.1		TIRE REPLACE	PR 1213000900 CM (CORRECTIVE MAINTENANCE) CM HI-ACE DN 1642 CY	EA	2	1,280,000	2,560,000	28 Nov 2025 31 Dec 2025
4.2		SPOORING	GANTI BAN DEPAN (KIRI DAN KANAN) TIRE SIZE 205/70 R15C BRIDGESTONE R624 TOTAL: 2 EA	LOT	1	200,000	200,000	28 Nov 2025 31 Dec 2025
4.3		BALANCING	BALANCING	LOT	1	280,000	280,000	28 Nov 2025 31 Dec 2025
5	4260000006	MNT_SVC-VEH,VEH,CRTV,TYT-INNV MAINTENANCE SERVICE - VEHICLE, VEHICLE, CORRECTIVE, TOYOTA-INNOVA		EA	1			28 Nov 2025 31 Dec 2025
5.1		TIRE REPLACE	PR 1213000900 CM (CORRECTIVE MAINTENANCE) CM INNOVA DN 1335 CE	EA	2	930,000	1,860,000	28 Nov 2025 31 Dec 2025
5.2		SPOORING	GANTI BAN DEPAN DAN BELAKANG TIRE SIZE 205/65 R16 DUNLOP ENASAVE TOTAL: 2 EA	LOT	1	200,000	200,000	28 Nov 2025 31 Dec 2025
5.3		BALANCING	BALANCING	LOT	1	280,000	280,000	28 Nov 2025 31 Dec 2025
5.4		TIRE ROTATION	TIRE ROTATION	LOT	1	30,000	30,000	28 Nov 2025 31 Dec 2025
Other								

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PO Date		Location/Project Name
28 November 2025		Banggai Ammonia Plant [BAP]
Order Type		Vendor Name
PAU PO Service		UD SINAR MAS
Optional Price		
Total Price :		14,275,000

APPROVED

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SPECIFIC / SPECIAL TERMS AND CONDITIONS

A. TERMS OF PAYMENT AND INVOICING

All payments shall be made to the bank account designated by Vendor with the following arrangement:

100% (hundred percent) of Purchase Order price shall be paid by Telegraphic Transfer (T/T) Within 30 (Thirty) days after complete & correct invoice received by PAU:

1. One (1) signed copy of purchase order and terms and conditions of the purchase order.
2. One (1) Copy Completion Report (BAST) which is signed by two party.
3. One (1) Original Invoice & Tax receipt (If Any).

The address in the Tax Invoice shall be written as follow:

PT Panca Amara Utama

Jl. Pro. DR. Satrio No. Kav. 3-5, Gedung DBS Bank Tower Lantai 18 Ciputra World 1, RT. 018 RW. 004, Kelurahan Karet Kuningan, Kecamatan Setiabudi, Jakarta Selatan, Daerah Khusus Ibukota Jakarta 12940

NPWP: 02.161.292.4-011.000

The concerned invoices, with complete documentations, would be simultaneously sent by color scan copy to the following e-mail address: finance.pau@essa.id with cc to the following email address: procurement.pau@essa.id; procurement.bap@essa.id

B. LIQUIDATED DAMAGE FOR DELAYED DELIVERY

NOT APPLICABLE

INITIAL	
PAU	VENDOR

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GENERAL TERMS & CONDITIONS

1. DEFINITION

The following definitions shall apply for this General Terms and Conditions of Contract:

- i. "Buyer/Purchaser/Employer" means PT Panca Amara Utama. Buyer will include any Buyer's employees, agents, or other representatives.
- ii. "Vendor/Supplier/Seller" means the person or entity with whom the Contract has been entered into. Vendor will also include any Vendor's employees, agents, sub-contractors or other representatives.
- iii. "Goods" means the goods, materials, hardware, products being purchased or to be supplied as set forth in the contract.
- iv. "Services/Works" means the scope of work to be performed by the Vendor to the Buyer as set forth in the Contract.
- v. "Confidential Information" has the meaning assigned to such term.
- vi. "Contract" means
 - the Purchase Order(s) (including any appendices therein);
 - any agreement signed between the Buyer
 - and the Vendor and this General Terms and Conditions.
- vii. "Deliverables" refers to specific, tangible or intangible outcomes or outputs that a vendor is obligated to deliver or provide as part of a contract such as goods, services, work, reports, documentation, etc.
- viii. "Delivery" refers to the act of transferring or providing the agreed-upon goods, services, or deliverables to Buyer, as specified in the contract.
- ix. "Losses" means all direct losses, claims, charges, costs, liabilities, penalties, fines and expenses (including, without limitation, damages, legal and other professional fees and costs, and the cost of pursuing any insurance providers).
- x. "Subcontractor" means any person named in the Contract as a subcontractor, or any person appointed as a subcontractor, for a part of the Work; and the legal successors in title to each of these persons.

2. APPLICABILITY

This Contract shall supersede any terms proposed by the Vendor, whether explicit or implied. In the event of a conflict between the terms of the Vendor and those of the Buyer, the Buyer's terms shall prevail. The order of precedence in case of a conflict within the Contract documents is as follows:

- i. Buyer's Purchase order/agreement
- ii. Any other appendices or attachments
- iii. These General Terms and Conditions

3. VENDORS' OBLIGATIONS

- a. The Vendor shall return a signed copy of the Contract or formal acceptance via email within three working days of receipt. Should the Vendor raise no objections within seven days, all terms shall be deemed accepted. Any delivery made without formal acceptance will also constitute binding acceptance.
- b. In the absence of a Contract prior to delivery, the Vendor is obligated to request it from the Buyer.
- c. The Vendor shall adhere to the Buyer's instructions regarding the Deliverables. In case of any uncertainty, the Vendor must seek written clarification from the Buyer.
- d. The Vendor must promptly inform the Buyer of any change in control of the Vendor's organization.
- e. Nothing in these terms shall establish a partnership, joint venture, or employment relationship between the Buyer and Vendor.

4. PRICING

The price for the Deliverables (the "Price") is firm and fixed as specified in the Contract. The Price is inclusive of all costs, including but not limited to packaging, shipping, insurance, duties, and taxes, excluding VAT. No adjustments to the Price, including those due to increased material, labor, transport costs, or currency fluctuations, will be allowed without the Buyer's prior written approval. Any unilateral price changes by the Vendor may result in partial or full termination of the Contract at the Buyer's discretion, without liability or penalty.

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GENERAL TERMS & CONDITIONS

5. PAYMENT TERMS

- a. Payments will be made by the Buyer within 30 days after receipt of an undisputed invoice and the acceptance of Deliverables in compliance with the Contract.
- b. Invoices must clearly reference the contract number and other supporting documents as specified in the Contract.
- c. Any disputes over invoices will be communicated to the Vendor within 14 days of receipt. The Vendor must provide supporting documentation or clarifications within 7 days of the dispute notice.
- d. The Buyer reserves the right to withhold payments for incomplete or defective deliverables until the deficiencies are rectified.
- e. No interest will be payable on withheld payments due to disputes or deficiencies.
- f. The Buyer may offset any sums due from the Vendor against any payments owed to the Vendor under the Contract.

6. DELIVERY AND SHIPMENT

- a. Delivery must be made as specified by the Buyer; early deliveries may be rejected. Timeliness is essential.
- b. The Buyer reserves the right to reject the Deliverables within 15 days post-delivery or upon the discovery of latent defects.
- c. Each delivery must be accompanied by operating and safety instructions, as well as relevant warnings for proper usage, maintenance, and repair.
- d. Quantity changes require the Buyer's written consent. The Vendor shall bear responsibility for any losses or damages due to excess or short supply.
- e. For bulk deliveries, a deviation of up to 5% in quantity may be acceptable.
- f. For hazardous goods, the Vendor must provide packing details, a Material Safety Data Sheet (MSDS), and a transportation plan for Buyer's approval before shipment.
- g. The Vendor shall give written notice of shipment to the Buyer when the goods are ready for dispatch. The Vendor shall provide the Buyer all shipping documents, including the commercial invoice, packing list and any other documents necessary to release the goods. The consignee for shipping documents is:

PT PANCA AMARA UTAMA
 GD. DBS BANK TOWER LT.18, CIPUTRA WORLD 1, JAKARTA
 JL. PROF. DR. SATRIO KAV.3-5, KARET KUNINGAN, SETIABUDI,
 JAKARTA SELATAN 12940, INDONESIA
 NPWP: 02.161.292.4-011.000

7. QUALITY

The Deliverables must strictly adhere to Buyer-approved quality standards and specifications, free from defects, and fit for the intended purpose. No modifications are allowed without the Buyer's prior written consent.

8. VARIATIONS TO DELIVERABLES

- a. The Buyer reserves the right to issue variations to the Contract, including changes to specifications, quantities, packaging, or delivery details, through written notice.
- b. The Vendor must promptly notify the Buyer in writing if they believe any requested change or additional work falls outside their scope of obligations.
- c. The Vendor must submit written confirmation of the cost and time impact within 15 days of receiving the variation request. Failure to do so waives any claims.

9. LIQUIDATED DAMAGES FOR DELAYED DELIVERY

- a. In the event of delayed deliverables, liquidated damages at a rate of 1% per week, up to a maximum of 10% of the total Contract value shall be levied. These damages may be deducted from any payments due or recovered by the Buyer, without prejudice to any other available rights or remedies.
- b. Payment or deduction of liquidated damages shall in no way relieve the Vendor from completing the Deliverables and discharging all its other obligations under the contract.

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GENERAL TERMS & CONDITIONS

10. RISK PURCHASE

If the Vendor fails to deliver the Deliverables within the agreed time or fails to meet the required quality or specifications, the Buyer may, after giving the Vendor reasonable notice, procure the Deliverables from an alternative Vendor at the Vendor's risk and cost. Any additional expenses incurred by the Buyer shall be recoverable from the Vendor, without prejudice to the Buyer's other rights under the Contract or applicable law.

11. INSURANCE

- a. The Vendor shall, at its own cost, arrange and maintain all required insurance under Applicable Laws for the Deliverables, including coverage for all risks, transportation, and storage until completion as per agreed delivery terms. The Vendor must also insure personnel, equipment, and vehicles, and may need to name the Buyer's lenders as 'loss payees' if required. Insurance costs are included in the Basic Price unless stated otherwise. Additionally, the Vendor shall maintain Product Liability or Commercial General Liability Insurance. Insurance coverage does not affect the Vendor's contractual liabilities. For international purchases, insurance must comply with INCOTERM 2010, and any pre-title damage claims must be addressed by the Vendor's insurer.
- b. Irrespective whether the insurance claim is settled, partially settled or not settled, the Vendor shall be fully responsible for replacement of loss/damaged Goods to the same delivery point as per Contract without affecting the delivery schedule and at no cost to the Buyer.

12. WARRANTY

- a. The Vendor warrants that the Deliverables will conform to the specifications, be free from defects in material and workmanship, and remain fit for the intended purpose for a period of at least 18 months from delivery or 12 months of the Buyer's acceptance, whichever is later.
- b. In case of defects or non-compliance during the warranty period, the Buyer may, at its discretion, require the Vendor to promptly repair, replace, or refund the defective Deliverables at the Vendor's expense.
- c. Any repaired or replaced items will be subject to an extended warranty of an additional 12 months from the date of repair or replacement.
- d. The Vendor shall bear all costs related to the transportation of defective items, including shipping, insurance, and customs duties.
- e. This warranty shall survive termination of the Contract and is in addition to any other warranties provided by law or through equitable principles.

13. ASSIGNMENT

- a. The Vendor shall not assign, transfer, or sub-contract any of its rights or obligations under the Contract without the Buyer's prior written consent.
- b. In the event of any subcontracting, all requirements outlined in the Contract and all Buyer's rights must apply to the subcontractors. The Vendor must ensure subcontractors comply with Contract terms and provide performance reports and collateral warranties to the Buyer upon request.
- c. The Buyer may assign or transfer its rights or obligations under the Contract to any affiliated company or successor entity without the Vendor's consent, provided that such assignment does not adversely affect the Vendor's rights under the Contract.

14. FORCE MAJEURE

- a. Neither Party shall be liable for any delay or failure to perform its obligations under the Contract due to events beyond its reasonable control, including but not limited to acts of God, war, terrorism, civil unrest, government actions, strikes, lockouts, pandemics, or natural disasters ("Force Majeure").
- b. The affected Party must notify the other Party promptly within 7 working days of the occurrence of a Force Majeure event, providing relevant details of the event and its impact on performance.
- c. The Vendor shall use all reasonable endeavours to mitigate the effects of any Force Majeure event and resume performance as soon as possible.
- d. The Buyer may cancel Contract or amend the same without penalty and obtain the deliverables from other sources during the Vendor's Force Majeure event.

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GENERAL TERMS & CONDITIONS

15. INTELLECTUAL PROPERTY RIGHTS

- a. The Vendor warrants that the Deliverables do not infringe any patents, trademarks, copyrights, or other intellectual property rights of any third party.
- b. All intellectual property rights arising from the performance of the Contract, including any custom designs or specifications provided by the Buyer, shall vest in the Buyer. The Vendor hereby assigns all such rights to the Buyer.
- c. The Vendor shall grant the Buyer a non-exclusive, royalty-free license to use any Vendor intellectual property necessary for the use, sale, or maintenance of the Deliverables.

16. CONFIDENTIALITY

- a. The Vendor shall treat all information, specifications, drawings, and data supplied by the Buyer as confidential and shall not disclose such information to any third party without the Buyer's prior written consent.
- b. This confidentiality obligation shall remain in force for a period of five years from the date of disclosure and survive the termination or expiry of the Contract.
- c. The Vendor may disclose confidential information to its employees, agents, or subcontractors only to the extent necessary for the performance of its obligations under the Contract and shall ensure such parties are bound by equivalent confidentiality obligations.

17. COMPLIANCE WITH LAWS AND REGULATIONS

- a. The Vendor warrants that in the performance of its obligations under the Contract, it shall comply with all applicable laws, regulations, decrees, and standards of the Republic of Indonesia, including but not limited to labor laws, environmental regulations, health and safety standards, and industry-specific legislation.
- b. The Vendor shall obtain and maintain all necessary permits, licenses, and approvals required for the performance of its obligations under Indonesian law, including but not limited to compliance with the Indonesian Ministry of Manpower, the Indonesian Environmental Management Act, and any regional or local regulations.
- c. The Vendor shall ensure compliance with Indonesian anti-corruption and anti-bribery laws, including but not limited to Law No. 31 of 1999 on the Eradication of Corruption and subsequent amendments. The Vendor shall not engage in any form of bribery or corrupt practices in connection with the performance of this Contract.
- d. The Vendor agrees to comply with all Indonesian tax laws, including the timely payment of all applicable duties, taxes, and levies related to the Deliverables. The Vendor must provide valid tax identification (as applicable) and ensure all relevant tax documentation is in order.
- e. In the event of any conflict between applicable international regulations and Indonesian laws, the Vendor must promptly notify the Buyer and adhere to relevant legal requirements.
- f. The Vendor shall immediately inform the Buyer of any breach of this clause and fully cooperate with any investigation or audit related to compliance with Indonesian laws.

18. HEALTH, SAFETY, AND ENVIRONMENT (HSE)

- a. The Vendor shall ensure that all Deliverables under the Contract comply with applicable environmental, health, and safety (EHS) regulations and standards, and do not pose a risk to the health or safety of individuals or the environment.
- b. The Vendor shall provide the Buyer with all necessary safety information, including but not limited to Material Safety Data Sheets (MSDS) and any other instructions for the safe handling, storage, use, and disposal of the Deliverables.
- c. The Vendor must adhere to the Buyer's HSE policies when working at any of the Buyer's sites and ensure that its personnel and subcontractors comply with all relevant safety protocols and use appropriate personal protective equipment (PPE).
- d. The Vendor shall immediately notify the Buyer of any incidents, accidents, or breaches of environmental or safety regulations that occur in connection with the performance of the Contract.

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GENERAL TERMS & CONDITIONS

19. NOTICES

- a. Any notices required under the Contract shall be in writing and sent by registered mail, courier, or email to the respective Parties at their addresses or email addresses specified in the Contract.
- b. Notices shall be deemed to have been received:
 - i. In the case of registered mail, five days after posting;
 - ii. In the case of courier, on the date of delivery;
 - iii. In the case of email, on the date the email is sent, provided there is no automated failure message.
- c. Either Party may change its address or email for notices by giving the other Party written notice of the new address or email.

20. NOTIFICATION OF BREACH

Vendor is required to notify the buyer within 72 hrs in writing of any breaches or potential breaches of this contract as soon as they become aware of such occurrences. This notification must include a detailed description of the nature of the breach, the circumstances surrounding it, and any relevant information that may assist in the resolution of the issue. Failure to provide timely notification may result in the cancellation of the contract and vendor being held liable for any resulting damages or losses incurred by the buyer.

21. COUNTERPARTS

The Contract may be executed in any number of counterparts, each of which shall be deemed as original, but all of which together shall constitute one and the same Contract. Signatures delivered electronically (e.g., via email or an electronic signature platform) shall be deemed valid and binding for all purposes.

22. SEVERABILITY

If any provision of the Contract is found to be invalid, illegal, or unenforceable by a court of competent jurisdiction, such provision shall be deemed severed from the Contract, and the remaining provisions shall continue in full force and effect. The Parties shall use their best efforts to negotiate a valid and enforceable replacement provision that reflects the original intent of the severed provision.

23. WAIVER

No waiver of any provision of the Contract by either Party shall be effective unless made in writing and signed by the waiving Party. The failure of either Party to enforce any provision of the Contract shall not be construed as a waiver of that provision or any other provisions, nor affect the validity of the Contract.

24. SURVIVAL

The provisions of the Contract that are inherently intended to survive termination or expiry (including but not limited to warranties, indemnities, confidentiality obligations, and dispute resolution provisions) shall survive the termination or expiry of the Contract.

25. THIRD-PARTY RIGHTS

Unless otherwise expressly provided in the Contract, no person other than the Buyer and the Vendor shall have any rights to enforce any term of the Contract.

26. INDEMNITY

The Vendor agrees to indemnify, defend, and hold harmless the Buyer, its affiliates, employees, and agents from and against any and all claims, damages, liabilities, costs, or expenses (including legal fees) arising from or in connection with:

- a. Any breach of the Vendor's obligations under the Contract;
- b. Injury or damage to property or persons (including death) resulting from the Vendor's actions or omissions;
- c. Defects in the Deliverables supplied or the Vendor's failure to comply with applicable laws, regulations, or standards.
- d. Any claims arising from infringement of third-party intellectual property rights due to the use, sale, or distribution of the Deliverables under the Contract.

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GENERAL TERMS & CONDITIONS

27. TERMINATION

- a. The Buyer reserves the right to terminate the Contract, in whole or in part, with immediate effect by providing written notice to the Vendor in the event of:
 - i. The Vendor's breach of any material term or condition of the Contract or it is evident that such breach will occur and if not remedied within 14 days of receiving notice of the breach;
 - ii. The Vendor's insolvency, bankruptcy, or appointment of a receiver or administrator;
 - iii. Any Force Majeure event that continues for more than 30 days.
- b. Upon termination, the Buyer shall be entitled to a refund of any payments made for undelivered or non-conforming Deliverables.
- c. The Buyer may terminate the Contract for convenience by giving the Vendor 30 days' written notice. In such a case, the Vendor shall be entitled to payment for any Deliverables already delivered and accepted by the Buyer but shall not be entitled to any further compensation or damages.
- d. Termination of the Contract shall not affect the accrued rights, remedies, obligations, or liabilities of the parties existing at termination. Conditions that expressly or by implication survive termination of the Contract shall continue in full force and effect.

28. DISPUTE RESOLUTION AND GOVERNING LAW

- a. The Contract, including any disputes or claims arising out of or in connection with it, shall be governed by and construed in accordance with the laws of Indonesia, excluding its conflicts of law provisions.
- b. Disputes between the Parties, including those related to interpretation, performance, breach, or termination of the Contract, shall first be attempted to be resolved amicably through negotiation within thirty (30) calendar days from the date of written notice of the dispute by either Party.
- c. If amicable resolution fails, disputes shall be resolved by arbitration under the Indonesian National Board of Arbitration (BANI) Rules and Law No. 30 Year 1999 regarding Arbitration and Alternative Dispute Resolution. The arbitration panel shall consist of three arbitrators: one appointed by ESSA, one appointed by the Buyer, and a third, who will act as the chairman, appointed by the first two arbitrators or, failing agreement, by the Chairman of BANI. The arbitration will be conducted in Jakarta, Indonesia, in English.
- d. For international contracts, disputes shall be resolved by arbitration administered by the Singapore International Arbitration Centre (SIAC) in accordance with the SIAC Rules.
- e. Provisions regarding Governing Law and Arbitration shall survive termination or expiration of the Contract.

29. CODE OF BUSINESS CONDUCT

- a) The Vendor acknowledges that it has read, understands, and agrees to comply with the Buyer's Code of Business Conduct, which outlines the Buyer's commitment to ethical business practices, corporate responsibility, and compliance with legal standards.
- b) The Vendor shall ensure that its employees, agents, and subcontractors adhere to the principles of the Buyer's Code of Business Conduct [under development] in the performance of their obligations under this Contract.
- c) The Vendor agrees to conduct its business in a manner consistent with the highest ethical standards, including but not limited to compliance with human rights, fair competition, and sustainability practices.

30. COMPLIANCE VERIFICATION

- a) The Buyer reserves the right to review the Vendor's records and processes, including those of any subcontractors, to ensure compliance with the terms of the Contract and the Buyer's Code of Business Conduct, including but not limited to quality and adherence to applicable laws and regulations.
- b) Such reviews may be conducted with reasonable notice during normal business hours. The Vendor shall provide full cooperation and grant access to relevant records, facilities, and personnel to support the review.